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The Cost of Overincarcerating Indigenous Canadians

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Regarded as “*21st century residential schools*”, Canadian prisons incarcerate a disproportionate and alarming number of Indigenous people, which places a significant financial burden on the Canadian economy (1).

Despite accounting for only 5% of Canadians, Indigenous inmates comprise over **30%** of our federal prison population, and Indigenous women comprise nearly **50%** of female inmates (2; 11). While the number of non-Indigenous inmates is steadily decreasing, Indigenous incarceration rates are trending in the wrong direction, year after year.

(2)

Legacies of Colonialism

Indigenous people are overrepresented in prisons for various reasons, the foremost of these being colonialism. Legacies of colonialism, as executed by various public organizations throughout Canadian history, have led to severe socioeconomic marginalization of Indigenous communities.

This marginalization manifests in multiple ways: income and employment rate of Indigenous Canadians are significantly *lower* as compared to their non-Indigenous counterparts, while rates of homelessness, suicide, substance abuse, and mental disorders are significantly *higher* (3).

Disproportionately Harsh Responses

“Overpoliced, overcharged, and overprosecuted.”

Indigenous offenders face the harshest criminal justice responses our system offers (3). They are more likely to be arrested and prosecuted; serve longer sentences; and almost *half* of the inmates in solitary confinement – referred to as “hell on Earth” – are Indigenous (4; 14).

The system is also flawed in its regimented requirements. For example, an Indigenous offender can be denied bail for missing a court appearance, however, if they are homeless or without transportation

from a remote reserve, we can see how this requirement can devolve into a form of automatic, '*Indigenized*' punishment (5). Failure to accommodate for specific needs of this vulnerable population highlights negligence on the part of the criminal justice system.

The Costs to Canadians

\$121,339: The average cost per year to imprison a male inmate.

\$212,005: The average cost per year to imprison a female inmate (13).

The annual budget of Correctional Services Canada is in the millions and has been continually increasing (7). The cost to house offenders, a large proportion of which are Indigenous, is daunting because of the hundreds of thousands of dollars, but also the fact that it is largely ineffective in addressing the offender's root issues. Approximately 75% of imprisonment costs goes to employee costs (7). It is evident that most of the money spent on offenders is not spent on *them*, but their maintenance and surveillance. This means that after discounting fundamental necessities, infrastructural and employee costs, there is very little left to actually address, help, or treat the offender.

Contextualizing the Numbers

\$19,498: The average cost per year of post-secondary education in Canada (8).

The cost of a Canadian student's education for one year, on average, is around 16% of what it costs to imprison a male inmate and around 9% of what it costs to imprison a female inmate.

\$66,800: The average household income per year in Canada (9).

The amount that the average household makes in Canada is around 55% of what it costs to imprison a male inmate and around 32% of what

it costs to imprison a female inmate.

Prison Makes it Worse

The reasons behind one's offending can actually be *worsened* in prison. There is an established link between exacerbation of mental health and imprisonment, which should be especially considered when talking about Indigenous Canadians, who suffer disproportionately from mental illnesses.

This failure to address Indigenous offenders is costly as well. For example, Indigenous women account for 78% of self-harm incidents in prison. They are moved to higher security levels, experience invasive surveillance, and are segregated from others (12). Along with failing to actually *treat* the offender's mental illness, these measures all cost more money.

Recidivism Rates

Within five years of their release, 38% of offenders reoffended, and 60% of Indigenous men reoffended, according to a Canadian study (10). This cyclical nature of the criminal justice system accumulates further costs per prisoner.

Inadequate Supports

Re-allocating funding from more punitive measures to more supportive measures may help Indigenous offenders reintegrate into Canadian society, the economy, and address the root cause of offending. This support will be more cost-effective in the long run, as well as potentially help curb rates of re-offending (13).

Going Forward

Abolitionists call for tearing down prisons. The other side of that spectrum wants harsher punishment for offenders. Somewhere in the middle of that is reform. Many reports recommend legislative changes and reallocation of funds, starting with a focus on community services.

\$32, 327: The average cost per year to maintain an offender in the community (13).

This is **73% less** than what it costs to imprison a male inmate per year and **85% less** than what it costs to imprison a female inmate per year. Experts have long been calling to explore alternatives to imprisonment, specifically for Indigenous offenders whose culture includes high levels of community support and a focus on rehabilitation (3).

Conclusion

This is not a new issue – the over-incarceration of Indigenous Canadians has been acknowledged by policy-makers time and time again, however, incarceration rates continue to increase, and the system lacks substantive reform.

Evidently, the system in place is expensive, cruel, and ineffective. The disproportionate incarceration of Indigenous Canadians is a costly and unjust epidemic; in order to outline a path forward, it is imperative to first redraw and repurpose our justice system.

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